

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13
Honorable Daniel T. Nishigaya
R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: May 22, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 7	25CV478111	Victor Paredes et al vs FORD MOTOR COMPANY et al	Hearing: Petition Compel Arbitration Ctrl Click (or scroll down) on Line 7 for tentative ruling.
LINE 8	25CV480120	Ruben Hernandez Jr. et al vs PHH Mortgage Corporation et al	Motion to Consolidate The motion is MOOT and OFF CALENDAR. Moving party is pursuing a request for dismissal of the entire action. In addition, case 25CV482063, which is the matter Plaintiffs move to consolidate with 25CV480120, was dismissed on December 23, 2025.
		9:01 CALENDAR	
9:01 LINE 1	24CV428770	Prateek Rathaur et al vs Madhavi Prabha et al	Hearing: Compromise of Minor's Claim Petitioner to appear. (Rule of Court, Rule 7.952(a).) The tentative ruling is to approve the unopposed petition and for the Court to sign the previously submitted Form MC-351.

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Calendar Line 1

Case Name: *Ghazi Farwana v. Tesla, Inc.*

Case No.: 24CV448132

I. BACKGROUND

Plaintiff Ghazi Farwana (“Plaintiff”) was employed by Defendant Tesla, Inc. (“Defendant”) as a mid-level manager on July 22, 2019. (Complaint at ¶ 8.) On May 10, 2023, Plaintiff was discharged from his employment. (*Id.* at ¶ 64.) Plaintiff filed suit on September 25, 2024 and alleges causes of action for *inter alia*, retaliation, disability discrimination, failure to provide reasonable accommodations, and failure to engage in the interactive process.

Defendant now moves to compel arbitration pursuant to an arbitration agreement provided in Plaintiff’s initial offer letter. Plaintiff argues the arbitration agreement is unenforceable because it is unconscionable. Having reviewed the agreement and evidence, the Court agrees with Defendant and grants the motion.

II. LEGAL STANDARD

Defendant argues the Federal Arbitration Act (“FAA”) applies because Plaintiff’s “employment relationship with Tesla facilitated interstate commerce because Tesla’s business, and Plaintiff’s concomitant job duties, ultimately affected interstate commerce.” (Mtn. to Compel Arbitration at p. 3:19-21.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Alternatively, Defendant argues the California Arbitration Act (“CAA”) governs the Arbitration Agreement. (Mtn. to Compel Arbitration at pp. 4:19-5:5.) Code of Civil Procedure section 1281.2 provides:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy in that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel